

File No.: EXP202211758

RESOLUTION No.: R/00229/2023

Considering the complaint filed on September 24, 2022, with this Agency by A.A.A. (hereinafter, the complainant) against CASH CONVERTERS ESPAÑA, S.L. (hereinafter, the respondent), for not having duly attended to their right of erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant sent an email to the respondent requesting the erasure of their personal data, receiving a response indicating that they had received the inquiry and that they would provide a solution as soon as possible.

A few days later, on June 20, 2022, they sent another email informing the complainant that their request had been forwarded to the relevant department "(...) and they will contact you shortly to confirm your cancellation."

On July 23, 2022, the complainant sent another email stating "(...) as of today, my account is still active and my personal data, consequently, has not been erased."

SECOND: On September 24, 2022, a complaint was received by this Agency against the respondent for not having duly attended to the right of erasure.

THIRD: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to provide a response to the complainant and this Agency within one month.

The representative of the respondent states that the complainant did not exercise the right at the web address indicated in their privacy policy but at another one that only manages inquiries related to the products intended to be sold online.

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They indicate that when they became aware of the request on July 13, 2022, they sent an email informing that "(...) your request must be made by filling out the corresponding ARCOPOL form for erasure, available on the website (<https://cashconverters.es/gdpr/arcopol/>), and sending it signed along with a copy of your ID to this same email address, protecciondedatos@cash-converters.es, which is designated for the exercise of ARCOPOL rights."

"As we already stated in our response to the complainant, the reason for the delay in responding is that, for unknown reasons, their email had been lodged in the 'junk or spam' folder, and upon realizing the error, we proceeded to respond to it, immediately deactivating the account, as can be seen in the following image (it was not necessary to fill out the form or provide any documentation)."

"However, as we already indicated, for the erasure of your personal data from our files, you must fill out the corresponding ARCOPOL form for erasure, available on the website (<https://cashconverters.es/gdpr/arcopol/>), and send it signed along with a copy of your ID to this same email address, protecciondedatos@cash-converters.es, which is designated for the exercise of ARCOPOL rights and as indicated in the regulations regarding data protection.

In response to the complainant's refusal to provide a copy of their ID, we replied to their email indicating once again that according to the GDPR and the rest of the applicable Spanish regulations on Data Protection, ARCOPOL Rights are personal in nature, so to exercise them, it is necessary to properly identify the person exercising any of these rights.

For identification purposes, it is necessary to receive both the duly filled and signed form and a copy of their ID to verify that the person signing is indeed who they claim to be.”

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on December 16, 2022, for the purposes provided for in Article 64.2 of the LOPDGGD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the admission agreement, will be six months.

The aforementioned agreement granted the respondent entity the opportunity to be heard, so that within ten working days it could present any allegations it deemed appropriate. This entity reiterated, in summary, the allegations presented in response to the transfer of the complaint.

FOURTH: On December 16, 2022, the respondent submitted a new document to this Agency in which it provided a copy of the email received from the respondent informing that “(...) we confirm the cancellation of the account subscribed with us, with immediate effect.”

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"In response to your request made on July 23, 2022, for the deletion of your personal data from our files, I inform you that your request must be made by filling out the corresponding ARCOPOL form for deletion, available on the website (<https://cashconverters.es/gdpr/arcopol/>), and sending it signed along with a copy of your ID to this same email address, protecciondedatos@cash-converters.es, which is designated for the exercise of ARCOPOL rights."

FIFTH: After examining the allegations presented by the responding party, they are to be forwarded to the claiming party, so that, within a period of fifteen working days, they may formulate any allegations they deem appropriate, stating, in summary, “(...) that the fact that the deletion request arrived at an incorrect email address for the exercise of the rights under the GDPR is not attributable to the claimant (...)"

"That, although I had considered my right to deletion satisfied with the response from the responding party on November 16, being unaware of the photo attached to the response to the claim, I cannot state anything other than its absolute non-compliance.

Since, if the responding party bases compliance on that image, it would actually be communicating a non-existent cancellation, as the data remains incorporated into a computer file. In short, from the image attached by the responding party, I deduce that they confuse the right to deletion with the right to object (regarding “I do not accept receiving offers, promotions, and discounts”) or with the right to restriction of processing (regarding “I do not accept the transfer of my data to the group (...)"

SIXTH: After granting the responding party a hearing, it states that

“Once the allegations of Mr. Sanz have been analyzed, and although he has been requested to provide his ID for identification purposes, a request that was not attended to by the complainant; however, and considering that only the receipt of the identifying document remained to address the exercise of that right, and having reliably verified the identity of the complainant, the cancellation of his data has been carried out, a decision that has been communicated to him via email, as we certify with Copy of the cancellation communication as document number two.”

In said email, they indicate that “By means of this, we inform you that we have received your request for deletion of personal data from our databases, and that in accordance with the provisions of Articles 17 and 19 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, as well as the rest of the applicable regulations, your right to deletion has been made effective. We inform you that the deletion of your data will result in their blocking, retaining only that information which other legislations or Competent Public Administrations require us to keep for the legally established period in each case. Once the aforementioned period has elapsed, we will proceed to the definitive deletion of your data. (...)"

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LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, requiring it to respond to this Agency within one month and to prove that it has provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated. The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. “(59) Formulas must be devised to facilitate the exercise of rights by the data subject under this

Regulation, including mechanisms to request and, where appropriate, obtain free of charge, in particular, access to personal data and its rectification or erasure, as well as the exercise of the right to object. The data controller must also provide means for requests to be submitted electronically, particularly when personal data is processed by electronic means. The data controller must be obliged to respond to the requests of the data subject without undue delay and at the latest within one month, and to explain its reasons in case it does not comply.”

In accordance with the provisions of these regulations, the data controller must devise formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not comply with such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be understood as granted if the data controller provides remote access to the data.

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considering the request attended to (although the interested party may request the information related to the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

“1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in accordance with Union or Member State law applicable to the controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) for exercising the right to freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

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d) for archival purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or

e) for the formulation, exercise, or defense of claims.”

FIFTH: Article 12 of the LOPDGDD establishes that:

“(…) 2. The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right cannot be denied solely on the grounds that the affected party opts for another means.

(…)

4. The burden of proof for compliance with the duty to respond to the request for the exercise of their rights made by the affected party shall rest with the data controller. (…)”

SIXTH: Article 12.6 of the GDPR states that:

“6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, they may request additional information necessary to confirm the identity of the data subject.”

Furthermore, Recital 64 of the same legal text indicates that Recital (64) “The data controller must use all reasonable measures to verify the identity of data subjects who request access, particularly in the context of online services and online identifiers. The controller should not retain personal data solely for the purpose of being able to respond to potential requests.”

SEVENTH: In the case analyzed here, from the examination of the documentation provided, it has been established that the claimant requested the deletion of their personal data and that the entity did not respond.

However, upon becoming aware of the present procedure, it sent an email indicating that the claimant should complete a specific form attached and send it, along with a copy of their ID, to the address provided.

During the processing of this procedure, the responding party has sent the claimant a new email informing them that they have proceeded to fulfill the requested right of deletion.

Data protection regulations do not establish a specific and concrete model for the exercise of rights.

Therefore, the responding party cannot require the claimant to complete and sign the model provided when it is clearly deduced from their initial request that they intend to exercise their right of deletion.

The possibility of requesting the ID, or another identifying document, is established in data protection regulations if the data controller cannot confirm the identity of the person exercising their rights with the data they have. However, in this case, during the period for allegations, the responding party has provided a document containing the data they have about the claimant, including the email address.

Therefore, when the responding party received the exercise of rights through that system, they can verify that the sender's address is the claimant's address, and consequently, the submission of a photocopy of the ID is no longer necessary, and they should have attended to the requested right.

Consequently, it is appropriate to uphold the claim that led to this procedure.

As a result of the above, it is appropriate to uphold, for formal reasons, the claim presented, as the

right of deletion has been attended to belatedly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against CASH CONVERTERS ESPAÑA, S.L. However, it is not appropriate to issue a new certification by said entity, as the response has been issued belatedly, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CASH CONVERTERS ESPAÑA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
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